

24SMCV06020 24SMCV06020

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Case Number: 24SMCV06020 Hearing Date: September 23, 2026 Dept: P

Tentative

Ruling

Jorge

Lopez v. Mercedes-Benz USA, LLC, Case No. 24SMCV06020

Motions:

(1)

Plaintiff's

Motion to Withdraw or Amend Deemed Admissions

(2)

Defendant's

Motion for Summary Judgment

Hearing

Date: September 23, 2026

Background

This is a

lemon law case. Plaintiff Jorge Lopez sues Defendant Mercedes-Benz USA, LLC and Mercedes Benz of Beverly Hills, alleging that Mercedes-Benz failed to repair or replace Plaintiff's 2021 Mercedes Benz S-Class vehicle, in violation of the Song-Beverly Consumer Warranty Act. (Complaint, ¶ 8.)

On

December 11, 2024, Plaintiff filed the operative complaint.

On March

18, 2026 and March 20, 2026, Mercedes-Benz filed five motions to compel plaintiff's response to Mercedes-Benz's request for production of documents, interrogatories, deposition, and a motion to deem RFAs admitted. Lopez served responses on May 8, 2026, stating "Verification to follow." (Wong Decl. ¶ 2, Ex. B.) On May 20, 2026, the Court granted all five motions to compel and deemed the RFAs admitted.

On June 5,

2026, Mercedes-Benz moved for summary judgment based on the RFAs deemed admitted. Lopez then obtained the verifications and on June 8, 2026, sent the verifications to Mercedes-Benz. (Id. at ¶¶ 5-6.)

On

September 1, 2026, Lopez moved to withdraw the RFAs deemed admitted. On September 10, 2026, Mercedes-Benz filed opposition.

Motion

to Withdraw Admission

"A party

may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties." (Code Civ. Proc., § 2033.300, subd. (a).) The Court may only permit withdrawal or amendment if it determines that (1) the admission was "the result of mistake, inadvertence, or excusable neglect" and (2) the party who obtained the admission "will not be substantially prejudiced in maintaining that party's action or defense on the merits." (Id., § 2033.300, subd. (b).) Additionally, where a court grants such a motion, it may impose conditions on further discovery. (Id., § 2033.300, subd. (c).)

"The trial

court's discretion in ruling on a motion to withdraw or amend an admission is not unlimited, but must be exercised in conformity with the spirit of the law and in a manner that serves the interests of justice." (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1420 (Albertsons).)

Any doubts in applying section 2033.300 must be resolved in the moving party's favor. (Ibid.) "[T]he court's discretion to deny a motion under the

statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party's action or defense on the merits." (Id. at pp. 1420–1421.)

Discussion

Lopez

argues that the only reason the Court granted the Motion to Deem RFAs admitted was because the RFAs were not verified. Lopez argues that verifications were later sent and that the delay in bringing this motion was because of an internal communication failure that meant that Lopez's counsel was never notified that the RFAs were received and sent to opposing counsel.

In

opposition, Mercedes-Benz argues that Mr. Wong's declaration, cited in the Motion to Withdraw, was not filed concurrently with the motion and because Plaintiff's evidence does not establish excusable neglect or diligence because law office neglect is not generally considered excusable. Mercedes-Benz argues that if any relief is provided, the Court should re-open discovery and require Plaintiff's responses by provided by a date certain, continue trial, and require Plaintiff to pay Mercedes Benz's reasonable attorneys' fees and costs incurred in preparing and filing the mooted motion for summary judgment.

First, the

Lopez's supporting declaration is attached to his ex parte application and motion to withdraw deemed admissions, filed concurrently with this motion. Though there appears to be a technical error in the file name, Mercedes-Benz received the declaration with the evidence referenced in the motion and was not prejudiced by the error. The Court will consider the Wong declaration submitted in support of the ex parte application as in support of this motion as well, since it is clearly the referenced document.

On

February 11, 2025, Mercedes-Benz served Lopez with RFAs No. 1-31. (Wong Decl. ¶ 2, Ex. A.) Lopez served responses on May 8, 2026, stating "Verification to follow." (Id. ¶ 3, Ex. B.) The Court granted Mercedes-Benz's Motion to deem RFAs Admitted on May 20, 2026, because the responses were unverified. (Id. ¶ 5.) Lopez then obtained the verifications and sent them to Mercedes-Benz on

or around June 8, 2026. (Id. at ¶¶ 5-6.) Mercedes-Benz does not dispute that it received the verifications on or around June 8, 2026. Though verifications were delivered to Mercedes-Benz in June, Lopez's attorney did not discover that they had been received or served until he was finalizing Plaintiff's opposition to Mercedes-Benz's Motion for Summary Judgment. (Id. at ¶ 9.) He then filed this motion. (Ibid.)

Lopez moves

to withdraw those RFAs deemed admitted pursuant to Code of Civil Procedure section 2033.300. He argues that his failure to include certain RFAs in his responses was due to his mistake and excusable neglect in failing to realize that someone else at his firm had received and transmitted the RFA verifications. Whether such a failure is excusable is debatable, as argued by Defendant. However, Albertsons instructs that any doubts in the application of section 2033.300 must be resolved in the moving party's favor." (Albertsons, supra 168 Cal.App.4th at 1420.) And it is not clear to the Court that Plaintiff's mistake was inexcusable, as required to deny relief under Albertsons. Nor is Mercedes-Benz at risk of being prejudiced if Plaintiff's motion is granted. While Mercedes-Benz protests the expense involved in defending this action, Mercedes-Benz itself has filed multiple motions within just the past few months. Thus, the Court finds that Lopez is entitled to relief under section 2033.300 and that Mercedes-Benz will not suffer prejudice from Lopez's admissions being withdrawn.

Conclusion

Lopez's

Motion to Withdraw Admissions is GRANTED.

Defendant's

Motion for Summary Judgment rests entirely on Plaintiff's deemed admissions. Because the Court grants Plaintiff relief pursuant to section 2033.300, Defendant's motion is DENIED.

The Court

agrees with Mercedes-Benz that a trial continuance is warranted. Mercedes-Benz, however, cites no authority authorizing an award of fees or sanctions on this motion and did not request sanctions on its initial motions to compel. The Court therefore declines to award fees.

Plaintiff

is ordered to produce code-compliant responses to Mercedes-Benz's RFAs within ten (10) days. The Court will discuss the length of any trial continuance at the hearing.